

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Clark S. Cheney
Chief Administrative Law Judge**

In the Matter of

**CERTAIN SEMICONDUCTOR DEVICES,
PRODUCTS CONTAINING SAME, AND
COMPONENTS THEREOF**

Investigation No. 337-TA-1500

CHART OF AGREED AND DISPUTED CONSTRUCTIONS

Pursuant to the Procedural Schedule (Order No. 6), Complainant GlobalFoundries U.S. Inc. (“GlobalFoundries” or “Complainant”) and Respondents Tower Semiconductor Ltd., Tower Partners Semiconductor, Ltd., Tower Semiconductor Italy S.r.l., Tower US Holdings, Inc., Tower Semiconductor San Antonio, Inc., Tower Semiconductor NPB Holdings, Inc., Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC (“Tower” or “Respondents”) (GlobalFoundries and Tower collectively, “the Parties”) submit the below chart of agreed and disputed constructions.

Agreed Constructions		
<i>Claim</i>	<i>Claim Term</i>	<i>Joint Construction</i>
'425 patent, claim 2	“outermost edges ... vertically coincident to each other”	“outermost edges ... vertically aligned with each other”

Disputed Constructions for Claim Terms Identified by Complainant			
<i>Claim</i>	<i>Claim Term</i>	<i>Complainant’s Proposal</i>	<i>Respondents’ Proposal</i>
None			

Disputed Constructions for Claim Terms Identified by Respondents			
<i>Claim</i>	<i>Claim Term</i>	<i>Complainant's Proposal</i>	<i>Respondents' Proposal</i>
'546 patent at claims 1-14; '167 patent at claims 1, 3, 4	"layer" / "first liner layer" / "refractory metal layer"	The terms are not indefinite. The terms should be construed in accordance with their plain and ordinary meaning.	Indefinite or, if not indefinite: "a separate and defined [first liner / refractory metal] coating of material"
'546 patent at claims 1, 2, 6, 8-9, 13; '167 patent at claims 1, 2, 6	"intermix region"	The term is not indefinite. The term should be construed in accordance with its plain and ordinary meaning.	Indefinite
'235 patent at claims 1, 10	"from a nickel silicide surface at a silicon interface to an opposite surface of the nickel silicide"	The term is not indefinite. The term should be construed in accordance with its plain and ordinary meaning.	Indefinite
'983 patent at claims 1, 5, 13, 17, 20	"adjacent to"	The term is not indefinite. The term should be construed in accordance with its plain and ordinary meaning.	Indefinite
'983 patent at claims 1, 13, 20	"the channel is displaced from [a/the] first heavily doped region adjacent to the first edge of the gate"	The term is not indefinite. The term should be construed in accordance with its plain and ordinary meaning.	Indefinite
'983 patent at claims 4, 16	"the drift isolation region is disposed under the gate"	The term should be construed in accordance with its plain and ordinary meaning.	"the drift isolation region is positioned at least in part under the gate"
'983 patent at claims 7,	"the channel having a channel length that is	The term should be construed in accordance	"the channel having a channel length that is

Disputed Constructions for Claim Terms Identified by Respondents			
18	controlled by ion implantation”	with its plain and ordinary meaning.	formed by implanting ions into the substrate to form a channel well”
’983 patent at claims 1, 2, 6, 13-15, 20	“edge of the gate”	The term should be construed in accordance with its plain and ordinary meaning.	“edge of the gate electrode over the gate dielectric”

Dated: August 24, 2026

Respectfully submitted,

/s/ Bert C. Reiser

Clement Naples
Cleary Gottlieb Steen & Hamilton LLP
One Liberty Plaza
New York, NY 10006
Telephone: (212) 225-2516
Facsimile: (212) 225-3999
cnaples@cgsh.com

Bert C. Reiser
Sami Al-Marzoog
Cleary Gottlieb Steen & Hamilton LLP
2112 Pennsylvania Ave., N.W.
Washington, DC 20037
Telephone: (202) 974-1500
Facsimile: (202) 974-1999
breiser@cgsh.com
salmarzoog@cgsh.com

Thomas W. Yeh
Cleary Gottlieb Steen & Hamilton LLP
650 California St, Suite 2400
San Francisco, CA 94108
Telephone: (415) 796-4400
Facsimile: (415) 796-4499
tyeh@cgsh.com

Email: team-globalfoundries-itc-cgshonly@cgsh.com

*Counsel for Complainant
GlobalFoundries U.S. Inc.*

/s/ Stephen R. Smith

Stephen R. Smith
Phillip Morton
Samuel Whitt
Patrick Lauppe
Matthew Ritter
David Yun
COOLEY LLP
1299 Pennsylvania Ave., N.W., Suite 700
Washington, D.C. 20004
Telephone: (202) 842-7800
Facsimile: (202) 842-7899

Eamonn Gardner
COOLEY LLP
1144 15th Street, Ste. 2300
Denver, CO 80202
Telephone: (720) 566-4000

Matthew Brigham
COOLEY LLP
3175 Hanover Street
Palo Alto, CA 94304
Telephone: (650) 843-5000

Email: TowerITC@cooley.com

*Counsel for Respondents Tower
Semiconductor Ltd., Tower Partners
Semiconductor, Ltd., Tower Semiconductor
Italy S.r.l., Tower US Holdings, Inc., Tower
Semiconductor San Antonio, Inc., Tower*

*Semiconductor NPB Holdings, Inc., Tower
Semiconductor Newport Beach, Inc., and
Newport Fab LLC*

CERTIFICATE OF SERVICE

It is hereby certified that copies of the foregoing **CHART OF AGREED AND DISPUTED CONSTRUCTIONS** were served on August 24, 2026 as follows:

The Honorable Lisa R. Barton Secretary to the Commission U.S. International Trade Commission 500 E Street, SW, Room 112 Washington, DC 20436	BY EDIS
The Honorable Clark S. Cheney Chief Administrative Law Judge U.S. International Trade Commission 500 E Street, SW, Room 317 Washington, DC 20436	By Email and Box: Cheney1500@usitc.gov
Stephen R. Smith COOLEY LLP 1299 Pennsylvania Ave., N.W. Suite 700 Washington, D.C. 20004 <i>Counsel for Respondents Tower Semiconductor Ltd., Tower Partners Semiconductor, Ltd., Tower Semiconductor Italy S.r.l., Tower US Holdings, Inc., Tower Semiconductor San Antonio, Inc., Tower Semiconductor NPB Holdings, Inc., Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC</i>	By Email: TowerITC@cooley.com

/s/ Erika J. Weinstein

Erika J. Weinstein

CLEARY GOTTlieb STEEN & HAMILTON LLP